

		The Court's 6/18/26 Minute Order stated in part the following: "... Plaintiff has sufficiently established Defendant's breach of the settlement agreement and the Court intends to enter judgment on the parties' settlement pursuant to Code of Civil Procedure section 664.6. [¶] However, the amount of judgment to be entered is unclear to the Court, since it appears Defendant resumed payments after allegedly ceasing payments in August 2026, and Plaintiff has not submitted a reply brief. [¶] Plaintiff's counsel shall file and serve a reply declaration, not to exceed five pages, no later than 6/26/26, stating what the total amount to be entered for judgment is as of the present date, and explaining the basis for their calculation. If the reply declaration is not timely filed, the motion will be denied without prejudice." As of 6/29/26, Plaintiff's counsel has not submitted the required reply declaration stating the updated amount of judgment to be entered. Therefore, the motion is denied without prejudice. The parties are encouraged to informally resolve this issue if possible. However, Plaintiff may file a renewed motion with an updated judgment amount if necessary.
4	24-01395117 <i>Leming vs. Huntington Landmark Senior Adult Community Association</i>	Motion to Consolidate Plaintiff Carole Leming's Motion to Consolidate is DENIED without prejudice. Plaintiff moves to consolidate two matters: (1) <i>Carole Leming vs. Huntington Landmark Senior Adult Community Association</i>, OSC Case No. 30-2024-01395117-CU-PO CJC ("<i>Huntington Landmark</i> case"); and (2) <i>Carole Leming vs. PPM Construction</i>, , OSC Case No. 30-2023-01305363-CU-PA-CJC ("<i>PPM</i> case"). Both cases arise out of the same incident and policies. California Rules of Court, rule 3.350(a)(1), provides: "A notice of motion to consolidate must: [¶] (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; [¶] (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and [¶] (C) Be filed in each case sought to be consolidated." California Rules of Court, rule 3.350(a)(2), provides: "The motion to consolidate: [¶] (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; [¶] (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and [¶] (C) Must have a proof of service filed as part of the motion." The motion is procedurally deficient. The notice, memorandum, declaration, and other supporting papers were filed only in the <i>Huntington Landmark</i> case, the highest number case. They should have been filed in the <i>PPM</i> case, the lowest number case, with only the notice being filed in the <i>Huntington Landmark</i> case. While the notice's caption

		identifies the <i>PPM</i> case, the court’s electronic filing header shows it was actually filed in the <i>Huntington Landmark</i> case. These errors violate rule 3.350(a)(1) & (2). In addition, the attached proof of service does not include a service list. Therefore, there is no evidence the motion was served on all parties in both cases in violation of rule 3.350(a)(2).
5	25-01531711 <i>Nguyen vs. Toyota Motor Sales, U.S.A., INC.</i>	Demurrer to Complaint Defendant Toyota Motor Sales, U.S.A., Inc.’s Demurrer to the Complaint is CONTINUED to July 9, 2026 at 10:00 am in Department C33. A demurrer and motion to strike must be heard at the same time. (Cal. Rules of Court, rule 3.1322(b).) The concurrently filed Motion to Strike is set to be heard on July 9, 2026. Thus, the hearing on the demurrer is continued to the same date.
6	24-01437419 <i>Saeed vs. City of Newport Beach</i>	Motion for Leave to File Cross Complaint Defendant Environmental Construction, Inc.’s (“Environmental”) unopposed motion for leave to file a cross-complaint against Tot Lot Pros and ROES 1-50 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. §428.10, subd. (b).) “Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (Code Civ. Proc., § 428.50(c).) The proposed cross-complaint asserts causes of action for indemnity, contribution, declaratory relief and breach of contract against Tot Lot Pros. The proposed cross-complaint is therefore permissive. The claims are related to the incident alleged by Plaintiff in his Complaint. Plaintiff alleges that on October 29, 2023, while he was walking on a playground ramp located within Grant Howald Part in the City of Newport Beach, he slipped and fell, allegedly due to accumulated leaves and loose sand from an adjacent sand pit. In connection with the Grant Howald Park